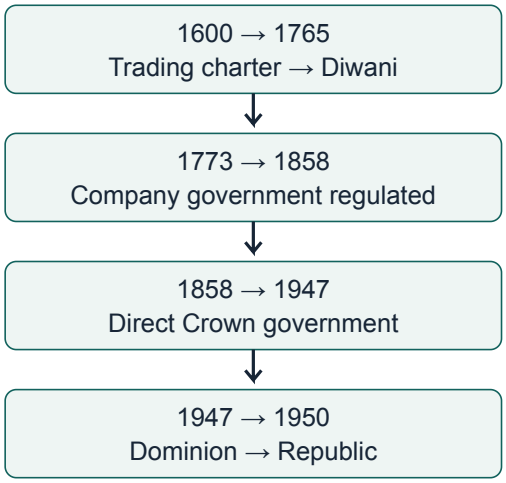
Historical Background

1. The constitutional journey

- **1600:** Elizabeth I grants the East India Company its trading charter. **1608:** English traders arrive at Surat.
- **1765:** Shah Alam II grants the Company the **Diwani of Bengal, Bihar and Orissa** after the Battle of Buxar (1764): revenue collection and civil justice become a basis for territorial power.
- **Company rule: 1773–1858** for this chapter's constitutional Acts; **Crown rule: 1858–1947**. These dates describe phases of constitutional administration, not the Company's entire existence.
- **Constituent Assembly constituted in 1946; Constitution adopted 26 November 1949; effective 26 January 1950.**



Trade, territorial power, Crown rule, then constitutional sovereignty.

2. Regulating Act, 1773

- First major parliamentary measure regulating Company government; recognised its **political and administrative functions** and began centralising administration in India.
- Governor of Bengal became **Governor-General of Bengal**, assisted by a **four-member Executive Council**. First: **Warren Hastings**.
- Bombay and Madras presidencies became subordinate to Bengal in matters covered by the Act, especially war and treaties.
- **Supreme Court at Calcutta, 1774:** one Chief Justice and three other judges.
- Restricted Company servants' private trade and acceptance of gifts/bribes; Court of Directors had to report revenue, civil and military affairs to the British government.
- **Recall:** 1773 = Bengal Governor-General + parliamentary regulation + Calcutta Supreme Court.

3. Amending Act, 1781: Act of Settlement

- Addressed conflicts between the Supreme Court and Company administration.

- Exempted Governor-General/Council and Company servants from Court jurisdiction for **official acts**; revenue matters and revenue collection excluded from its jurisdiction.
- Court jurisdiction covered inhabitants of Calcutta; apply **Hindu personal law to Hindus and Muslim personal law to Muslims** in relevant matters.
- Appeals from Provincial Courts went to **Governor-General-in-Council**, rather than the Supreme Court.
- Governor-General-in-Council could frame regulations for Provincial Courts and Councils.

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4. Pitt's India Act, 1784

- Associated with British PM **William Pitt**; separated the Company's commercial and political functions.
- **Court of Directors → commercial affairs. Board of Control → political affairs**, including supervision of civil, military and revenue administration.
- Established **double government** in Britain: Company machinery with British governmental political control. This is different from provincial dyarchy under the 1919 Act.
- Company territories were described as **British possessions in India**; British governmental control strengthened.



Double government concerns British oversight of the Company.

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5. Act of 1786 and Charter Act, 1793

- **1786, Cornwallis:** Governor-General could override his Council in special circumstances; could also hold the office of **Commander-in-Chief**.
- **1793:** extended the special override power to future Governors-General and presidency Governors; strengthened Governor-General's control over Bombay and Madras.
- Renewed Company trade privileges for **20 years**.
- Commander-in-Chief was **not automatically** a member of the Governor-General's Council; separate appointment needed.
- Board of Control members/staff were paid from **Indian revenues**.

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6. Charter Act, 1813

- Ended the Company's monopoly over trade with India, **except trade in tea and trade with China**.

- Asserted Crown sovereignty over Company territories; permitted Christian missionaries and promoted Western education.
- Enabled local authorities to impose taxes and punish non-payment.
- **Trap:** commercial monopoly was partly removed in **1813**, entirely ended in **1833**.

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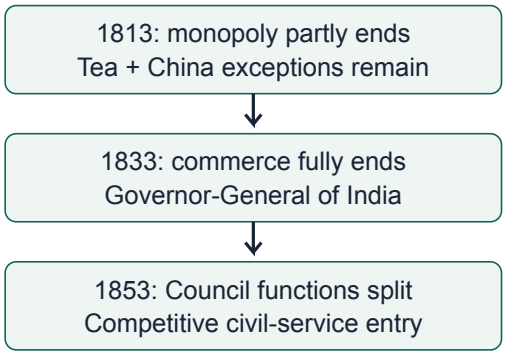
7. Charter Act, 1833

- Governor-General of Bengal became **Governor-General of India**; first: **William Bentinck**. Civil and military government centralised.
- Bombay and Madras lost legislative powers; Governor-General-in-Council became the central legislative authority for British India.
- Laws under this arrangement were called **Acts**, replacing the earlier designation **Regulations**.
- Company ceased commercial activity and became an **administrative body**; held territories in trust for the Crown.
- Declared that religion, birthplace, descent or colour should not alone disqualify a person from Company employment. **Do not equate this declaration with the introduction of an open competitive examination: that followed the 1853 reform.** 1833 equality clause discussed in Parliament

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8. Charter Act, 1853

- First clear separation of the **legislative and executive functions** of the Governor-General's Council.
- Added **six legislative councillors**, creating a distinct expanded legislative council with parliamentary-style deliberation.
- Four of the six additional legislative members represented the provincial governments of **Bengal, Bombay, Madras and Agra**. This was local institutional representation, not popular election of Indians.
- Open competitive recruitment replaced the civil-service patronage system; **Macaulay Committee, 1854** shaped the examination arrangements.
- Continued Company government **without another fixed 20-year term**, allowing Parliament to end it when required.



Remember the sequence: trade, centralisation, recruitment.

9. Government of India Act, 1858

- Following the **1857 revolt**, the Act for the Good Government of India transferred Company government, territories and revenues to the **Crown**.
- Governor-General also served as **Viceroy**, the Crown's representative. **Lord Canning** was the first Viceroy; the Governor-General office continued.
- Abolished **Board of Control and Court of Directors**, ending double government.
- Created **Secretary of State for India**, a British Cabinet minister responsible to Parliament, with extensive control over Indian administration.
- **Council of India:** 15 members, advisory; Secretary of State chaired it. **Secretary of State-in-Council** was a corporate body capable of suing/being sued in India and England.
- Mainly changed control from Britain; did not substantially reconstruct the administrative machinery in India.
- **Correction:** Company **rule ended in 1858**; the Company itself was **dissolved in 1874**. UK Parliament

10. Indian Councils Act, 1861

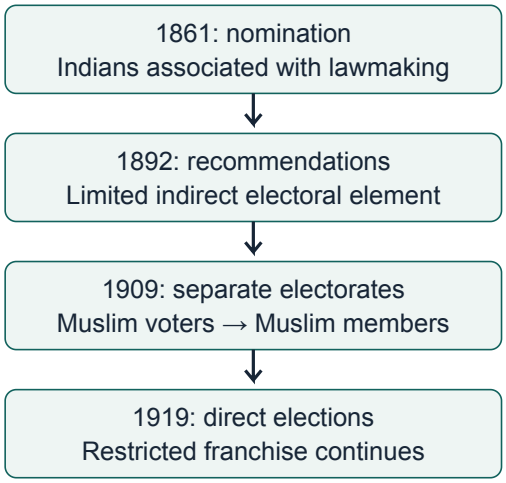
- Began associating Indians with legislation through **nomination of non-official members**, not a democratically elected legislature.
- **Canning's 1862 nominees:** Raja of Benares, Maharaja of Patiala and **Sir Dinkar Rao**.
- Restored legislative powers to **Bombay and Madras**, beginning decentralisation after earlier centralisation.
- Provided for new provincial legislative councils: **Bengal 1862; North-Western Provinces 1886; Punjab 1897**.
- Recognised the **portfolio system**, introduced by Canning in **1859**: a Council member handled a department and could issue orders on its behalf within assigned authority.
- Viceroy could issue emergency ordinances without legislative-council concurrence; validity **six months** under this historical provision. Do not apply this duration to the present Constitution's ordinance rules.

11. Indian Councils Act, 1892

- Increased additional members in central/provincial legislative councils, including more non-officials; official majorities retained.
- Allowed **budget discussion and questions to the executive**, with restrictions; not full control over finance or responsible government.
- **Central nominations:** recommendations of provincial legislative councils and Bengal Chamber of Commerce. **Provincial nominations:** recommendations of district boards, municipalities, universities, trade associations, zamindars and chambers of commerce.
- Introduced a limited, indirect electoral element through recommendations, although the Act avoided the word **election**.
- **Budget background:** India's first budget was presented in **1860**; budget discussion by councils came later.

12. Indian Councils Act, 1909: Morley–Minto reforms

- **Morley:** Secretary of State; **Minto:** Viceroy.
- Enlarged legislative councils; central additional membership ceiling increased **16** → **60**, while provincial council sizes varied.
- Centre retained an **official majority**; provinces could have **non-official majorities**. Non-official members included nominees: **non-official majority ≠ elected majority**.
- Expanded discussion: supplementary questions and resolutions on budgets/public matters, within restrictions.
- **Satyendra Prasad Sinha:** first Indian on the Viceroy's Executive Council, as **Law Member**.
- Introduced **separate electorates for Muslims**: Muslim voters elected Muslim representatives. Minto is associated with the label **Father of Communal Electorates**.
- Provided separate representation for presidency corporations, chambers of commerce, universities and zamindars.



Representation expanded while colonial executive control remained.

13. Government of India Act, 1919

- **Montagu–Chelmsford reforms:** Montagu, Secretary of State; Chelmsford, Viceroy. **20 August 1917 declaration:** gradual development of responsible government within the British Empire. Main arrangements operated from **1921**.
- Distinguished **central and provincial subjects**, relaxing central control; the system still remained substantially **unitary**.
- **Provincial dyarchy:** divided provincial administration into transferred and reserved subjects.
- **Transferred:** education, public health, local self-government and agriculture; ministers responsible to the provincial legislature.
- **Reserved:** police, justice, prisons, land revenue and finance; Governor and Executive Council, without responsibility to the legislature.
- **Centre:** bicameral legislature—**Council of State (upper)** and **Legislative Assembly (lower)**; direct elections introduced. The central executive did not become responsible to the legislature.

- Required **three of the six members** of the Viceroy's Executive Council, excluding Commander-in-Chief, to be Indians.
- Extended separate electorates to **Sikhs, Indian Christians, Anglo-Indians and Europeans**.
- Franchise remained restricted by **property, tax and other qualifications**; no universal adult suffrage.
- Created **High Commissioner for India in London**, taking over some functions of the Secretary of State.
- Provided for a Public Service Commission; first established **1926**, following the **Lee Commission (1923–24)**.
- Separated **provincial from central budgets**; provincial legislatures handled their provincial budgets.
- Required a statutory review after **ten years**.
- **Chamber of Princes/Narendra Mandal, 1921:** consultative forum on common interests; chaired by Viceroy; **120 members = 108 princes + 12 representatives of smaller states**.



Provincial dyarchy split responsibility within one province.

14. Simon Commission and Communal Award

- **Simon Commission:** appointed **November 1927**, ahead of the expected ten-year review; seven British members, chaired by **Sir John Simon**, no Indian member.
- Faced a widespread nationalist boycott. The Congress formally boycotted it; avoid the absolute claim that every Indian party/group refused cooperation. Government's Simon Commission account
- **Report, 1930:** favoured abolition of provincial dyarchy, responsible government in provinces, federation and continuation of communal representation.
- **Three Round Table Conferences, 1930–32 → White Paper, 1933 → Joint Select Committee → Government of India Act, 1935.**
- **Communal Award, August 1932:** British PM **Ramsay MacDonald** extended separate electorates to the **Depressed Classes**, alongside existing communal arrangements.
- **Gandhi's fast in Yeravada jail → Poona Pact, September 1932**, agreed with B.R. Ambedkar: **reserved seats for Depressed Classes within joint electorates**, replacing their separate-electorate arrangement.
- British government accepted the change; subsequent constitutional arrangements incorporated it. **Reservation of seats ≠ separate electorate.**

15. Government of India Act, 1935

- Indian constitutional provisions commonly studied as **321 sections and 10 schedules**. Act text
- Proposed **All-India Federation** of British Indian provinces and princely states. **Never came into operation:** the necessary princely-state accession did not occur.
- Three legislative lists: **Federal 59; Provincial 54; Concurrent 36**. **Residuary powers: Governor-General**—do not substitute the present constitutional arrangement.
- Abolished dyarchy in provinces; introduced **provincial autonomy**, operating from **1 April 1937**. Ministers were responsible to legislatures, but Governors retained special responsibilities and discretionary powers. Parliamentary record
- **Correction:** Congress ministries resigned in **1939**; this did not itself abolish the Act or provincial autonomy throughout India.
- Proposed **dyarchy at the Centre**: reserved/transferred federal subjects. It was **never implemented**, since the federal scheme did not commence.
- Bicameral legislatures in **six of eleven provinces**: Bengal, Bombay, Madras, Bihar, Assam and United Provinces.
- Continued communal representation; provided **reserved seats for Scheduled Castes** and representation for women and labour. SC reservation followed the joint-electorate settlement, not a separate SC electorate.
- Extended franchise to roughly **14% of the population**; still not universal adult suffrage.
- Abolished **Council of India**; Secretary of State continued with advisers.
- Provided for **Federal, Provincial and Joint Public Service Commissions**; **Federal Court established in 1937**.
- **RBI began operations 1 April 1935 under the RBI Act, 1934**. Do not state that the Government of India Act created the RBI. RBI history
- **Burma separated in 1937**; **Sind and Orissa became separate provinces in 1936**.
- Provided minority safeguards, a **Federal Railway Authority**, and an **Auditor-General** for federal/provincial accounts. Distinguish statutory provisions from institutions actually brought into operation.



1935: distinguish the implemented provincial system from the unimplemented federal scheme.

16. Indian Independence Act, 1947

- **20 February 1947, Attlee:** announced transfer of power by June 1948. **3 June, Mountbatten Plan:** partition; Congress and Muslim League accepted the plan.
- Bill introduced **4 July**; Royal Assent **18 July**; appointed day **15 August 1947**.
- Established independent **Dominions of India and Pakistan**; ended British governmental responsibility for governing their territories. Dominion status preceded India's republic.
- Viceroy's office ended; each Dominion had a **Governor-General**, appointed by the King on Dominion ministerial advice.
- **Constituent Assemblies:** sovereign constitution-making bodies and Dominion legislatures until constitutional arrangements changed; could repeal/amend inherited laws, including the Independence Act.
- Future British Acts did not automatically extend to the Dominions; extension required Dominion legislation.
- Abolished **Secretary of State for India**; remaining relevant British responsibilities passed to the Secretary of State for Commonwealth Relations.
- **British paramountcy over princely states lapsed**, along with related treaties/obligations; agreements with tribal areas also lapsed. States' accession and integration followed this change.
- Continued the **Government of India Act, 1935, as adapted**, as an interim constitutional framework; each Dominion could modify it.
- Removed British control through disallowance/reservation of Dominion laws. Governors-General assented in the King's name under the new constitutional arrangements.
- Governors-General and provincial Governors became constitutional heads, acting through the responsible government arrangements; removed **Emperor of India** from the royal style/title.
- Ended Secretary of State recruitment/reservation of posts for the former services; protected service conditions/benefits of existing eligible officers.
- **Mountbatten:** first Governor-General of independent India. **Jawaharlal Nehru:** first Prime Minister.
- **Partition geography:** Punjab and Bengal divided; Radcliffe Boundary Commissions determined boundaries. Pakistan included West Punjab, Sind, British Baluchistan, NWFP after referendum, East Bengal and **most of Sylhet** after referendum; part of Sylhet remained in India.
- For the constitutional provisions, see the Indian Independence Act.

17. Interim Government, 1946: members and portfolios

- Formed **2 September 1946**; Muslim League ministers joined later in October. The following is the chapter's combined roster, rather than the original September membership alone.
- Viceroy remained head of the Executive Council; **Nehru was Vice-President**, not yet independent India's Prime Minister.
- **Jawaharlal Nehru:** Vice-President; External Affairs and Commonwealth Relations.
- **Vallabhbhai Patel:** Home; Information and Broadcasting.
- **Rajendra Prasad:** Food and Agriculture.
- **John Mathai:** Industries and Supplies.
- **Jagjivan Ram:** Labour.
- **Baldev Singh:** Defence.

- **C.H. Bhabha:** Works, Mines and Power.
- **Liaquat Ali Khan:** Finance.
- **Abdur Rab Nishtar:** Posts and Air.
- **Asaf Ali:** Railways and Transport.
- **C. Rajagopalachari:** Education and Arts.
- **I.I. Chundrigar:** Commerce.
- **Ghazanfar Ali Khan:** Health.
- **Jogendra Nath Mandal:** Law.

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18. First Cabinet of independent India, 1947

- **Jawaharlal Nehru:** Prime Minister; External Affairs, Commonwealth Relations and Scientific Research.
- **Vallabhbhai Patel:** Home; Information and Broadcasting; States.
- **Rajendra Prasad:** Food and Agriculture.
- **Maulana Abul Kalam Azad:** Education.
- **John Mathai:** Railways and Transport.
- **R.K. Shanmukham Chetty:** Finance.
- **B.R. Ambedkar:** Law.
- **Jagjivan Ram:** Labour.
- **Baldev Singh:** Defence.
- **Rajkumari Amrit Kaur:** Health.
- **C.H. Bhabha:** Commerce.
- **Rafi Ahmed Kidwai:** Communications.
- **Shyama Prasad Mukherjee:** Industries and Supplies.
- **V.N. Gadgil:** Works, Mines and Power.
- **Fast comparison:** Finance—Liaquat Ali Khan → Shanmukham Chetty; Law—Mandal → Ambedkar; Education—Rajagopalachari → Azad.

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19. Prelims recall and mains answer cues

- **Three firsts:** Hastings—Governor-General of Bengal; Bentinck—Governor-General of India; Canning—Viceroy.
- **1833:** all trade ends + centralised legislation. **1853:** legislative/executive separation + competitive recruitment.
- **1861:** nomination + portfolio system + decentralisation. **1892:** indirect electoral element + budget discussion. **1909:** Muslim separate electorates.
- **1919:** provincial dyarchy + central bicameralism + direct elections. **1935:** provincial autonomy implemented; federation and central dyarchy unimplemented.
- **Different bodies:** Court of Directors—Company; Board of Control—British political oversight; Council of India—Secretary of State's advisory body; Council of State—central legislature's upper chamber under 1919.

- **Double government:** two authorities in Britain, 1784–1858. **Dyarchy:** divided subjects/administration, provincial system under 1919; proposed central system under 1935.
- **Mains framework:** trace centralisation → limited representation → provincial responsibility → sovereignty. Explain that colonial reforms introduced legislative/federal institutions while retaining executive safeguards and restricted franchise.
- **Continuities:** parliamentary procedures, provincial institutions, public service commissions, courts and administrative machinery. **Transformation after independence:** popular sovereignty, universal adult franchise, enforceable fundamental rights and fully constitutional government.
- For a 1919–1935 comparison, organise by **province, Centre, legislative lists, franchise and safeguards**; distinguish proposed provisions from implemented changes.